

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1316

 By: Bergstrom and Bullard of
 the Senate

6 and

7 Kendrix and **Maynard** of the
8 House

9
10 [administrative rules - sunset - permanent rules -
11 review - report - renewal - codification - effective
 date]

12
13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 250.11 of Title 75, unless there
16 is created a duplication in numbering, reads as follows:

17 A. As used in this act:

18 1. "Agency" shall have the same meaning as provided for in
19 Section 250.3 of Title 75 of the Oklahoma Statutes;

20 2. "Obsolete" means expired, unused, void, unenforceable, or
21 not enforced;

22 3. "Outdated" means no longer applicable or pertinent,
23 duplicative with other portions of the Oklahoma Administrative Code,
24 or superseded by other laws; and

1 4. "Unnecessary" means that public health, safety, and welfare
2 are not served by the portion of Oklahoma Administrative Code.

3 B. On January 1, 2028, and on January 1 every eight (8) years
4 thereafter, the permanent rules promulgated by or on behalf of the
5 following agencies shall sunset, and the following agencies shall
6 submit to the Legislature their permanent rules adopted pursuant to
7 the Administrative Procedures Act for review:

8 1. The Oklahoma Abstractors Board;

9 2. The Department of Wildlife Conservation's permanent rules
10 promulgated as part of OAC 800:1 through OAC 800:15;

11 3. The Oklahoma Used Motor Vehicle, Dismantler, and
12 Manufactured Housing Commission;

13 4. The Oklahoma Center for the Advancement of Science and
14 Technology;

15 5. The Oklahoma Capitol Improvement Authority;

16 6. The State Board of Examiners of Perfusionists;

17 7. The J.M. Davis Memorial Commission;

18 8. The State Board of Behavioral Health Licensure;

19 9. The Oklahoma Department of Libraries;

20 10. The Oklahoma Broadband Office;

21 11. The Oklahoma Space Industry Development Authority;

22 12. The Oklahoma Conservation Commission;

23 13. The Oklahoma New Motor Vehicle Commission;

24 14. The Office of Disability Concerns;

1 15. The Oklahoma State Board of Examiners for Long-Term Care
2 Administrators;

3 16. The Oklahoma Funeral Board;

4 17. The Board of Examiners for Speech-Language Pathology and
5 Audiology;

6 18. The Health Care Workforce Training Commission;

7 19. The Oklahoma Board of Licensed Alcohol and Drug Counselors;

8 20. The Department of Human Services' permanent rules
9 promulgated as part of OAC 340:1 through OAC 340:33;

10 21. The State Board of Licensed Social Workers;

11 22. The Oklahoma Boll Weevil Eradication Organization;

12 23. The Oklahoma Horse Racing Commission;

13 24. The Oklahoma Educational Television Authority;

14 25. The State Textbook Committee; and

15 26. The Oklahoma Turnpike Authority's permanent rules
16 promulgated as part of OAC 731:1 through OAC 731:5.

17 C. On January 1, 2029, and on January 1 every eight (8) years
18 thereafter, the permanent rules promulgated by or on behalf of the
19 following agencies shall sunset, and the following agencies shall
20 submit to the Legislature their permanent rules adopted pursuant to
21 the Administrative Procedures Act for review:

22 1. The Alcoholic Beverage Laws Enforcement Commission;

23 2. The State Board of Cosmetology and Barbering;

1 3. The Department of Wildlife Conservation's permanent rules
2 promulgated as part of OAC 800:16 through OAC 800:30 and any
3 permanent rules promulgated under OAC 800:31 and above;

4 4. The State Board of Veterinary Medical Examiners;

5 5. The Oklahoma Arts Council;

6 6. The State Board of Examiners of Psychologists;

7 7. The Archives and Records Commission;

8 8. The Board of Podiatric Medical Examiners;

9 9. The Oklahoma Historical Society;

10 10. The Oklahoma Liquefied Petroleum Gas Board;

11 11. The Corporation Commission;

12 12. The Board of Directors of the Tobacco Settlement Endowment
13 Trust Fund;

14 13. The Oklahoma Municipal Power Authority;

15 14. The Board of Dentistry;

16 15. The Council on Law Enforcement Education and Training;

17 16. The J.D. McCarty Center for Children with Developmental
18 Disabilities;

19 17. The Board of Medicolegal Investigations;

20 18. The Oklahoma Health Care Authority's permanent rules
21 promulgated as part of OAC 317:1 through OAC 317:77;

22 19. The Department of Human Services' permanent rules
23 promulgated as part of OAC 340:34 through OAC 340:67;

24 20. The Oklahoma State Regents for Higher Education; and

21. The Oklahoma Turnpike Authority's permanent rules promulgated as part of OAC 731:6 through OAC 731:10 and any permanent rules promulgated under OAC 731:11 and above.

D. On January 1, 2030, and on January 1 every eight (8) years thereafter, the permanent rules promulgated by or on behalf of the following agencies shall sunset, and the following agencies shall submit to the Legislature their permanent rules adopted pursuant to the Administrative Procedures Act for review:

1. The Oklahoma Accountancy Board;
2. The State Board of Medical Licensure and Supervision;
3. The Office of the State Auditor and Inspector;
4. The Oklahoma Tourism and Recreation Department's permanent rules promulgated as part of OAC 725:1 through OAC 725:17;
5. The Oklahoma Employment Security Commission;
6. The Oklahoma Department of Agriculture, Food, and Forestry's permanent rules promulgated as part of OAC 35:1 through OAC 35:27;
7. The Oklahoma Medical Marijuana Authority's permanent rules promulgated as part of OAC 442:1 through OAC 442:5;
8. The Office of the State Treasurer;
9. The Department of Human Services' permanent rules promulgated as part of OAC 340:68 through OAC 340:101;
10. The Oklahoma Department of Veterans Affairs;
11. The Oklahoma Board of Nursing;
12. The Oklahoma Water Resources Board;

1 13. The State Board of Osteopathic Examiners;

2 14. The Grand River Dam Authority;

3 15. The Department of Corrections;

4 16. The Office of Juvenile Affairs;

5 17. The Oklahoma Indigent Defense System;

6 18. The Oklahoma Health Care Authority's permanent rules
7 promulgated as part of OAC 317:78 through OAC 317:155 and any
8 permanent rules promulgated under OAC 317:156 and above;

9 19. The Commissioners of the Land Office;

10 20. The Oklahoma Board of Private Vocational Schools; and

11 21. The Statewide Charter School Board.

12 E. On January 1, 2031, and on January 1 every eight (8) years
13 thereafter, the permanent rules promulgated by or on behalf of the
14 following agencies shall sunset, and the following agencies shall
15 submit to the Legislature their permanent rules adopted pursuant to
16 the Administrative Procedures Act for review:

17 1. The Board of Governors of the Architects, Landscape
18 Architects and Licensed Interior Designers of Oklahoma;

19 2. The Oklahoma Medical Marijuana Authority's permanent rules
20 promulgated as part of OAC 442:6 through OAC 442:10 and any
21 permanent rules promulgated under OAC 442:11 and above;

22 3. The Construction Industries Board;

23 4. Service Oklahoma's permanent rules promulgated as part of
24 OAC 670:1 through OAC 670:6;

1 5. The Oklahoma Uniform Building Code Commission;

2 6. The Department of Human Services' permanent rules
3 promulgated as part of OAC 340:102 through OAC 340:130 and any
4 permanent rules promulgated under OAC 340:131 and above;

5 7. The Oklahoma Tourism and Recreation Department's permanent
6 rules promulgated as part of OAC 725:18 through OAC 725:35 and any
7 permanent rules promulgated under OAC 725:36 and above;

8 8. The Oklahoma Tax Commission's permanent rules promulgated as
9 part of OAC 710:1 through OAC 710:31;

10 9. The Oklahoma Department of Agriculture, Food, and Forestry's
11 permanent rules promulgated as part of OAC 35:28 through OAC 35:55
12 and any permanent rules promulgated under OAC 35:56 and above;

13 10. The Office of Management and Enterprise Services' permanent
14 rules promulgated as part of OAC 260:1 through OAC 260:45;

15 11. The State Department of Rehabilitation Services;

16 12. The Board of Tests for Alcohol and Drug Influence;

17 13. The Pardon and Parole Board;

18 14. The Board of Chiropractic Examiners;

19 15. The Department of Mental Health and Substance Abuse
20 Services' permanent rules promulgated as part of OAC 450:1 through
21 OAC 450:25;

22 16. The Oklahoma Firefighters Pension and Retirement Board;

23 17. The Commission for Educational Quality and Accountability;

24 18. The Insurance Department;

1 19. The Oklahoma Law Enforcement Retirement Board; and

2 20. The Capitol-Medical Center Improvement and Zoning

3 Commission.

4 F. On January 1, 2032, and on January 1 every eight (8) years
5 thereafter, the permanent rules promulgated by or on behalf of the
6 following agencies shall sunset, and the following agencies shall
7 submit to the Legislature their permanent rules adopted pursuant to
8 the Administrative Procedures Act for review:

9 1. The Banking Board;

10 2. The Office of Management and Enterprise Services' permanent
11 rules promulgated as part of OAC 260:46 through OAC 260:91;

12 3. The Department of Consumer Credit;

13 4. Service Oklahoma's permanent rules promulgated as part of
14 OAC 670:7 through OAC 670:12;

15 5. The Oklahoma Lottery Commission;

16 6. The Oklahoma Tax Commission's permanent rules promulgated as
17 part of OAC 710:32 through OAC 710:63;

18 7. The Oklahoma Department of Commerce;

19 8. The Department of Mental Health and Substance Abuse
20 Services' permanent rules promulgated as part of OAC 450:26 through
21 OAC 450:50;

22 9. The Oklahoma Development Finance Authority;

23 10. The Oklahoma Housing Finance Agency;

24 11. The Oklahoma Department of Securities;

12. The Oklahoma Police Pension and Retirement Board;

13. The Oklahoma State Bureau of Investigation;

14. The Oklahoma Public Employees Retirement System Board of Trustees;

15. The State Department of Health's permanent rules promulgated as part of OAC 310:1 through OAC 310:170;

16. The Office of the Secretary of State;

17. The Oklahoma Commission on Children and Youth; and

18. The Long-Range Capital Planning Commission.

G. On January 1, 2033, and on January 1 every eight (8) years thereafter, the permanent rules promulgated by or on behalf of the following agencies shall sunset, and the following agencies shall submit to the Legislature their permanent rules adopted pursuant to the Administrative Procedures Act for review:

1. The State Fire Marshal;

2. The Board of Trustees of the Teachers' Retirement System of Oklahoma;

3. The Department of Labor;

4. Service Oklahoma's permanent rules promulgated as part of OAC 670:13 through OAC 670:18;

5. The Incentive Evaluation Commission;

6. The Department of Mines;

1 7. The Office of Management and Enterprise Services' permanent
2 rules promulgated as part of OAC 260:92 through OAC 260:135 and any
3 permanent rules promulgated under OAC 260:136 and above;

4 8. The Oklahoma Tax Commission's permanent rules promulgated as
5 part of OAC 710:64 through OAC 710:95 and any permanent rules
6 promulgated under OAC 710:96 and above;

7 9. The Oklahoma State Bureau of Narcotics and Dangerous Drugs
8 Control;

9 10. The Department of Mental Health and Substance Abuse
10 Services' permanent rules promulgated as part of OAC 450:51 through
11 OAC 450:75 and any permanent rules promulgated under OAC 450:76 and
12 above;

13 11. The State Department of Health's permanent rules
14 promulgated as part of OAC 310:171 through OAC 310:341;

15 12. The Office of the Attorney General's permanent rules
16 promulgated as part of OAC 75:1 through OAC 75:27;

17 13. The University Hospitals Authority; and

18 14. The University Hospitals Trust.

19 H. On January 1, 2034, and on January 1 every eight (8) years
20 thereafter, the permanent rules promulgated by or on behalf of the
21 following agencies shall sunset, and the following agencies shall
22 submit to the Legislature their permanent rules adopted pursuant to
23 the Administrative Procedures Act for review:

24 1. The Oklahoma Real Estate Commission;

2. The Real Estate Appraiser Board;

3. The State Board of Licensure for Professional Engineers and Surveyors;

4. The Department of Public Safety's permanent rules promulgated as part of OAC 595:1 through OAC 595:37;

5. The Board of Examiners in Optometry;

6. The State Department of Health's permanent rules promulgated as part of OAC 310:342 through OAC 310:512;

7. The State Board of Pharmacy;

8. The State Board of Career and Technology Education's permanent rules promulgated as part of OAC 780:1 through OAC 780:17;

9. The State Board of Education's permanent rules promulgated as part of OAC 210:1 through OAC 210:20;

10. The Transportation Commission's permanent rules promulgated as part of OAC 730:1 through OAC 730:25;

11. Service Oklahoma's permanent rules promulgated as part of OAC 670:19 through OAC 670:25 and any permanent rules promulgated under OAC 670:26 and above;

12. The Administrative Office of the Courts; and

13. The Office of the Attorney General's permanent rules promulgated as part of OAC 75:28 through OAC 75:55 and any permanent rules promulgated under OAC 75:56 and above.

I. On January 1, 2035, and on January 1 every eight (8) years thereafter, the permanent rules promulgated by or on behalf of the

1 following agencies shall sunset, and the following agencies shall
2 submit to the Legislature their permanent rules adopted pursuant to
3 the Administrative Procedures Act for review:

4 1. The Oklahoma State Athletic Commission;

5 2. The Oklahoma Energy Resources Board;

6 3. The Department of Environmental Quality;

7 4. The Department of Public Safety's permanent rules
8 promulgated as part of OAC 595:38 through OAC 595:75 and any
9 permanent rules promulgated under OAC 595:76 and above;

10 5. The State Department of Health's permanent rules promulgated
11 as part of OAC 310:513 through OAC 310:681 and any permanent rules
12 promulgated under OAC 310:682 and above;

13 6. The State Board of Career and Technology Education's
14 permanent rules promulgated as part of OAC 780:18 through OAC 780:35
15 and any permanent rules promulgated under OAC 780:36 and above;

16 7. The State Board of Education's permanent rules promulgated
17 as part of OAC 210:21 through OAC 210:40 and any permanent rules
18 promulgated under OAC 210:41 and above;

19 8. The Oklahoma Workers' Compensation Commission;

20 9. The Oklahoma Aerospace and Aeronautics Commission;

21 10. The Transportation Commission's permanent rules promulgated
22 as part of OAC 730:26 through OAC 730:50 and any permanent rules
23 promulgated under OAC 730:51 and above;

24 11. The Council on Judicial Complaints;

1 12. The District Attorneys Council; and

2 13. The State Election Board.

3 J. Prior to submission of permanent rules as required by
4 subsections B through I of this section, an agency shall review its
5 enabling statutes and associated statutes relating to the agency's
6 powers and duties. Each agency shall prepare a report to accompany
7 its submission of permanent rules. The report:

8 1. Shall include any statutory provisions that are deemed by
9 the agency to be obsolete, outdated, or unnecessary. The report
10 shall include for each identified statutory provision a concise
11 notation as to why it should be repealed or otherwise removed from
12 the Oklahoma Statutes;

13 2. Shall state whether the substantive content in the submitted
14 permanent rules is still necessary and, if it is determined to be
15 necessary, the rationale for such determination;

16 3. Shall state whether necessary permanent rule content would
17 be more appropriately integrated into the Oklahoma Statutes;

18 4. Shall include the frequency with which the substantive
19 content of the permanent rules has been updated in the prior five
20 (5) years and the anticipated frequency of updates in the future;

21 5. May include information regarding additional provisions in
22 statute that are not within the agency's purview but have been
23 identified by the agency as being obsolete, outdated, or
24 unnecessary; and

1 6. May include information regarding provisions in statute that
2 could be made more concise through legislative action.

3 K. An agency shall electronically submit the report required by
4 subsection J of this section with its permanent rules, prior to the
5 applicable sunset date established by subsections B through I of
6 this section, to the President Pro Tempore of the Senate, the
7 Speaker of the House of Representatives, and the chair of the
8 committee in each house established or designated to review
9 administrative rules pursuant to Section 307.1 of Title 75 of the
10 Oklahoma Statutes.

11 L. Permanent rules submitted to the Legislature pursuant to the
12 provisions of subsections B through I of this section:

13 1. Shall be subject to the review, approval, and disapproval
14 provisions provided for in Section 308 of Title 75 of the Oklahoma
15 Statutes; and

16 2. May be renewed for additional terms of eight (8) years, or
17 fewer, by the Legislature by approval and enactment of a joint
18 resolution.

19 SECTION 2. This act shall become effective November 1, 2026.

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21 COMMITTEE REPORT BY: COMMITTEE ON ADMINISTRATIVE RULES, dated
22 04/08/2026 - DO PASS, As Coauthored.
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